

Bail Amendment Act 2023

No. of 2023

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Bail Amendment Act 2023[†]

No. of 2023

[Assented to _____]

The Parliament of Victoria enacts:

Part 1—Preliminary

1 Purpose

The main purpose of this Act is to amend the **Bail Act 1977**—

- (a) to make changes to the tests that are applied in making determinations in relation to bail, including by—
 - (i) providing that certain offences are no longer to be Schedule 2 offences to which certain 2 step tests apply; and

- (ii) providing that bail is not to be refused in respect of certain offences, subject to certain exceptions; and
- (b) to make changes in relation to what bail decision makers must take into account, including by reforming the provisions about what a bail decision maker must take into account when making a determination that relates to an Aboriginal person or a child; and
- (c) to repeal—
 - (i) the offence of contravening certain conduct conditions; and
 - (ii) the offence of committing an indictable offence whilst on bail; and
- (d) to make amendments to clarify, modernise, and otherwise improve that Act, including by—
 - (i) providing for sureties to be referred to as bail guarantees and bail guarantors; and
 - (ii) replacing gendered language; and
 - (iii) regularising references to bail undertakings; and
 - (iv) expanding the circumstances in which a court must hear a further application for bail; and
- (e) to require a review of the operation of the amendments made by this Act.

2 Commencement

- (1) Subject to subsection (2), this Act comes into operation on a day or days to be proclaimed.
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Part 1—Preliminary

- (2) If a provision of this Act does not come into operation before 25 March 2024, it comes into operation on that day.

3 Principal Act

In this Act the **Bail Act 1977** is called the Principal Act.

Part 2—Changes to tests to be applied by bail decision makers

Division 1—Certain offences no longer to be Schedule 2 offences

4 Power of police officer, sheriff or authorised person to grant or refuse bail

In the note at the foot of section 10(5) of the Principal Act, for "certain Schedule 2 offences" **substitute** "Schedule 2 offences".

5 Power of bail justice to grant or refuse bail

In the note at the foot of section 10A(5) of the Principal Act, for "certain Schedule 2 offences" **substitute** "Schedule 2 offences".

6 Treason, murder, certain other offences

- (1) For section 13(3) of the Principal Act **substitute—**

"(3) Only a court may grant bail—

(a) to a person accused of a Schedule 1 offence; or

(b) subject to subsection (4), on any other decision to which, under section 4AA, the step 1—exceptional circumstances test applies."

- (2) In section 13(4) of the Principal Act—

(a) in paragraph (a), for "person; or" **substitute** "person.";

(b) paragraph (b) is **repealed**.

7 Accused on 2 or more undertakings of bail

- (1) In section 13A(1) of the Principal Act **omit** "relevant".
- (2) Section 13A(3) of the Principal Act is **repealed**.

8 Schedule 2 amended

In Schedule 2 to the Principal Act—

- (a) item 1 is **repealed**;
- (b) item 30 is **repealed**.

Division 2—Offences in respect of which bail must not be refused

9 New section 4AAA inserted

After section 4 of the Principal Act **insert**—

"4AAA Offences in respect of which bail must not be refused

- (1) Despite anything to the contrary in any other provision of this Act, a bail decision maker who is deciding whether to grant bail to a person accused of an offence must not refuse bail if—
 - (a) the person is accused only of offences against the **Summary Offences Act 1966** that are not referred to in Schedule 3; and
 - (b) the person does not have a terrorism record; and
 - (c) if the bail decision maker is a court, no exception under subsection (2) applies.
- (2) An exception applies for the purposes of subsection (1)(c) if—
 - (a) the court has determined under section 8AA that there is a risk that the

person will commit a terrorism or
foreign incursion offence; or

- (b) the person was previously granted bail
in respect of any of the offences of
which the person is accused and that
bail was subsequently revoked.
- (3) A reference in this Act to a bail decision
maker considering, deciding or determining
whether to grant bail (however described)
includes a reference to a bail decision maker
who is prohibited from refusing bail by
subsection (1).

Example

Section 5AAAA(1) requires a bail decision maker
considering the release on bail of an accused to make
inquiries of the prosecutor as to whether certain
instruments are in force against the accused. Under
subsection (3), the bail decision maker must make
these inquiries even if subsection (1) prohibits the bail
decision maker from refusing bail.

- (4) Nothing in this section limits the power of a
court to revoke bail."

10 Persons subject to a summons to answer to a charge

- (1) In section 12B(2) of the Principal Act—
 - (a) for "The court" **substitute** "Subject to
subsection (2A), the court";
 - (b) in paragraphs (a) and (b), for "accused"
substitute "person".
 - (2) After section 12B(2) of the Principal Act **insert**—
"(2A) The court must not refuse bail if—
 - (a) the person is accused only of offences
against the **Summary Offences
Act 1966** that are not referred to in
Schedule 3; and
-

- (b) the person does not have a terrorism record; and
 - (c) no exception under subsection (2B) applies.
- (2B) An exception applies for the purposes of subsection (2A)(c) if—
 - (a) the court has determined under section 8AA that there is a risk that the person will commit a terrorism or foreign incursion offence; or
 - (b) the person was previously granted bail in respect of any of the offences of which the person is accused and that bail was subsequently revoked.
- (2C) If, under subsection (2A), the court must not remand the person, the court must instead either—
 - (a) grant the person bail; or
 - (b) allow the person to go at large."
- (3) In section 12B(3)(b) of the Principal Act, for "accused" **substitute** "person".

11 Schedule 3 inserted

After Schedule 2 to the Principal Act **insert**—

"Schedule 3—Exceptions to prohibition on refusing bail

Notes

- 1 Section 4AAA(1) prohibits a bail decision maker from refusing a person bail in certain circumstances. One of those circumstances is that every offence of which the person is accused is an offence against the **Summary Offences Act 1966** that is not listed in this Schedule.
 - 2 Section 12B(2A) prohibits a court from remanding a person in custody where that person is subject to a
-

summons to answer to a charge for an offence, and the person has come before the court and the hearing of the criminal proceeding is to be adjourned. The prohibition applies in certain circumstances. One of those circumstances is that every offence of which the person is accused is an offence against the **Summary Offences Act 1966** that is not listed in this Schedule.

1. An offence against section 19(1) of the **Summary Offences Act 1966** (sexual exposure).
 2. An offence against section 23 of the **Summary Offences Act 1966** (common assault).
 3. An offence referred to in section 24(1) or (2) of the **Summary Offences Act 1966** (aggravated assault).
 4. An offence against section 41A of the **Summary Offences Act 1966** (observation of genital or anal region).
 5. An offence against section 41B of the **Summary Offences Act 1966** (visually capturing genital or anal region) as in force before its repeal.
 6. An offence against section 41C of the **Summary Offences Act 1966** (distribution of image of genital or anal region) as in force before its repeal.
 7. An offence against section 41DA(1) of the **Summary Offences Act 1966** (distribution of intimate image) as in force before its repeal.
 8. An offence against section 41DB(1) of the **Summary Offences Act 1966** (threat to distribute intimate image) as in force before its repeal.
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9. An offence against section 41H(2) of the **Summary Offences Act 1966** (food or drink spiking).
10. An offence against section 41K(1) of the **Summary Offences Act 1966** (public display of Nazi symbols).
11. An offence against section 51(2), (3) or (4) of the **Summary Offences Act 1966** (assaulting, etc. emergency workers, custodial officers, youth justice custodial workers or local authority staff on duty).
12. An offence against section 51A(1) or (2) of the **Summary Offences Act 1966** (assaulting registered health practitioners).
13. An offence against section 52A of the **Summary Offences Act 1966** (offence to harass witness etc.)."

Division 3—Unacceptable risk test

12 When 2 step tests apply

For the note at the foot of section 4AA of the Principal Act **substitute**—

"Note

In circumstances where a step 1 test applies, section 4D provides that the unacceptable risk test will apply as a step 2 test. However, section 4D also provides that the unacceptable risk test applies even in circumstances where no step 1 test applies."

13 Section 4D substituted

For section 4D of the Principal Act **substitute**—

"4D When unacceptable risk test applies

A bail decision maker must apply the unacceptable risk test—

- (a) on section 4A(4) or 4C(4) requiring the bail decision maker to move to the step 2—unacceptable risk test; or
- (b) on a decision of whether to grant bail to which, under section 4AA, neither the step 1—exceptional circumstances test nor the step 1—show compelling reason test applies."

14 All offences—unacceptable risk test

- (1) For section 4E(1)(a)(i) of the Principal Act **substitute—**

"(i) endanger the safety or welfare of any other person, whether by committing an offence that has that effect or by any other means; or".

- (2) Section 4E(1)(a)(ii) of the Principal Act is **repealed.**

15 Conduct conditions

- (1) For section 5AAA(1)(a) of the Principal Act **substitute—**

"(a) endanger the safety or welfare of any other person, whether by committing an offence that has that effect or by any other means; or".

- (2) Section 5AAA(1)(b) of the Principal Act is **repealed.**

Division 4—Notes to heading to Schedule 1

24 Schedule 1 amended

For the notes below the heading to Schedule 1 to the Principal Act **substitute**—

"Notes

- 1 Section 4AA(1) sets out when a person who is accused of an offence in this Schedule will be subject to the step 1—exceptional circumstances test.
- 2 However, the step 1—exceptional circumstances test also applies in other circumstances. See section 4AA(2)."

Division 5—Preservation of certain aspects of items repealed from Schedule 2

25 When 2 step tests apply

After section 4AA(2)(c)(iii) of the Principal Act **insert**—

- "(iiia) while the accused was on remand for a Schedule 1 offence or a Schedule 2 offence;
or
(iiib) while the accused was at large awaiting sentence for a Schedule 1 offence or a Schedule 2 offence; or

Note

See subsection (5)."

Division 6—Status of persons released on undertakings

26 When 2 step tests apply

- (1) At the foot of section 4AA(2)(c)(v) of the Principal Act **insert**—

"Note

See subsection (5)."

(2) After section 4AA(4) of the Principal Act
insert—

"(5) For the purposes of subsection (2)(c)(iiib)
and (v)—

- (a) an accused who is released on an undertaking under section 72 of the **Sentencing Act 1991** following the court convicting the accused of an offence—
 - (i) is not at large awaiting sentence for that offence; and
 - (ii) is not serving a sentence for that offence; and
- (b) an accused who is released on an undertaking under section 75 of the **Sentencing Act 1991** following the court being satisfied that the accused is guilty of an offence—
 - (i) is not at large awaiting sentence for that offence; and
 - (ii) is not serving a sentence for that offence."

Division 7—Historical offences corresponding to Schedule 1 offences and Schedule 2 offences

27 Schedule 1 amended

After item 12 of Schedule 1 to the Principal Act
insert—

"13. Any other offence the necessary elements of which consist of elements that constitute an offence referred to in any other item of this Schedule."

28 Schedule 2 amended

After item 31 of Schedule 2 to the Principal Act **insert**—

"32. Any other offence the necessary elements of which consist of elements that constitute an offence referred to in any other item of this Schedule."

Division 8—Technical amendments

29 Definitions

In section 3 of the Principal Act **insert** the following definitions—

"step 1—exceptional circumstances test—
see section 4A;

step 1—show compelling reason test—
see section 4B;

step 1 test means—

- (a) the step 1—exceptional circumstances test; or
- (b) the step 1—show compelling reason test;

step 2—unacceptable risk test—see section 4D;".

30 Section 3D substituted

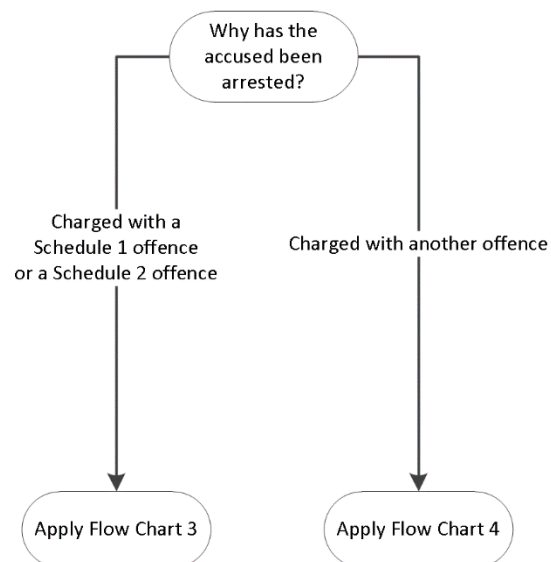
For section 3D of the Principal Act **substitute**—

"3D Flow Charts

- (1) A Flow Chart in this section illustrates the key features of the decision making process to which it relates. It is intended only as a guide to the reader.

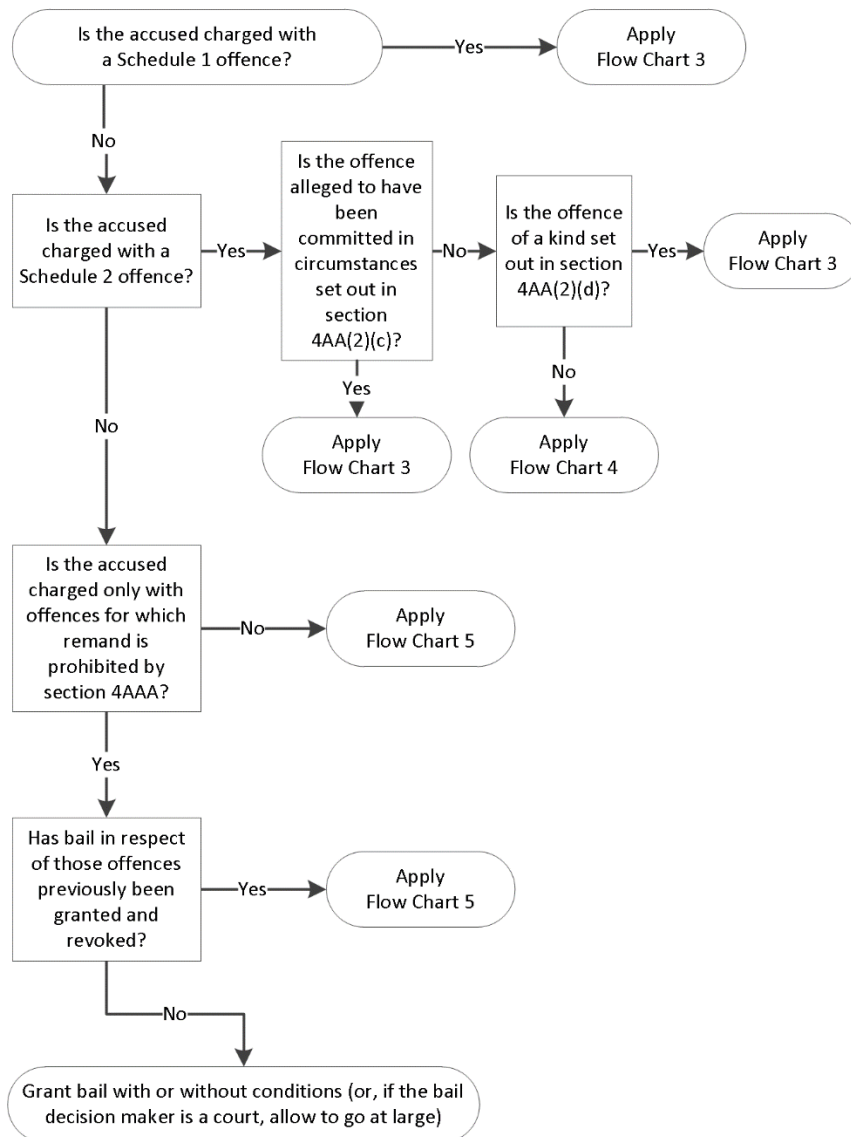
- (2) Flow Chart 1 shows the process for determining which tests are to be applied in deciding whether to grant bail to a person if—
- (a) the person has a terrorism record; or
 - (b) the court considering whether to grant bail determines under section 8AA that there is a risk that the person will commit a terrorism or foreign incursion offence.

Flow Chart 1 – Terrorism record or terrorism risk



- (3) Flow Chart 2 shows the process for determining which tests are to be applied in deciding whether to grant bail to a person to whom neither subsection (2)(a) nor (b) applies.

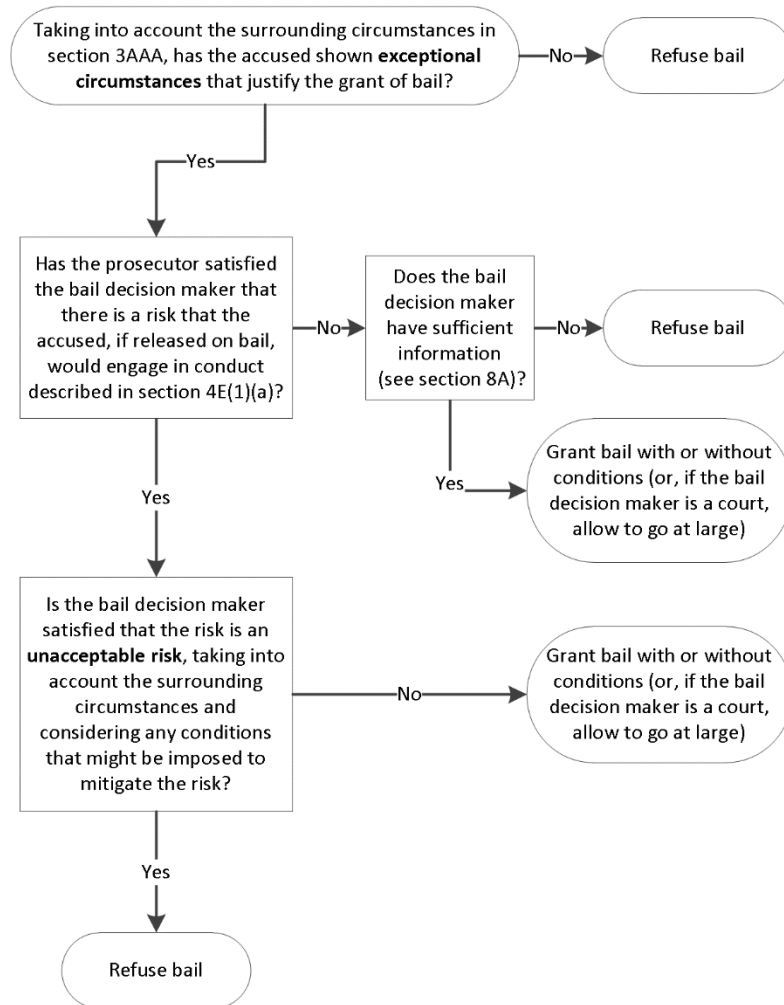
Flow Chart 2 – Which tests apply generally?



Part 2—Changes to tests to be applied by bail decision makers

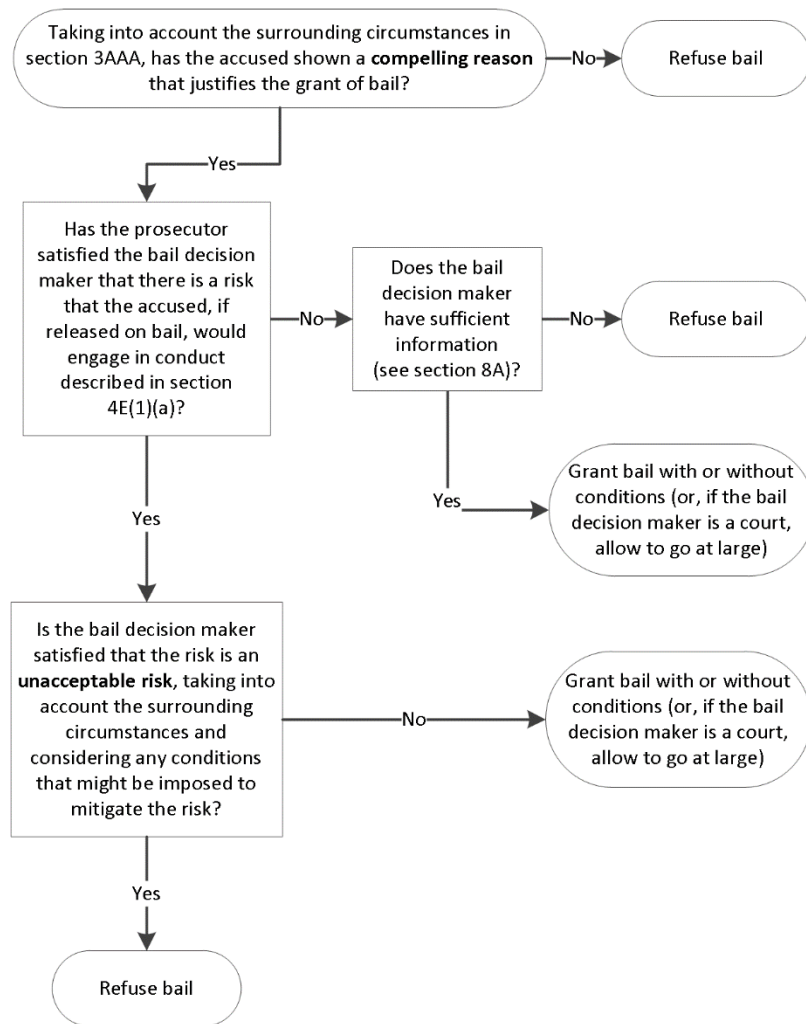
- (4) Flow Chart 3 shows the process for applying the step 1—exceptional circumstances test and then the step 2—unacceptable risk test.

Flow Chart 3 – Exceptional circumstances and unacceptable risk tests



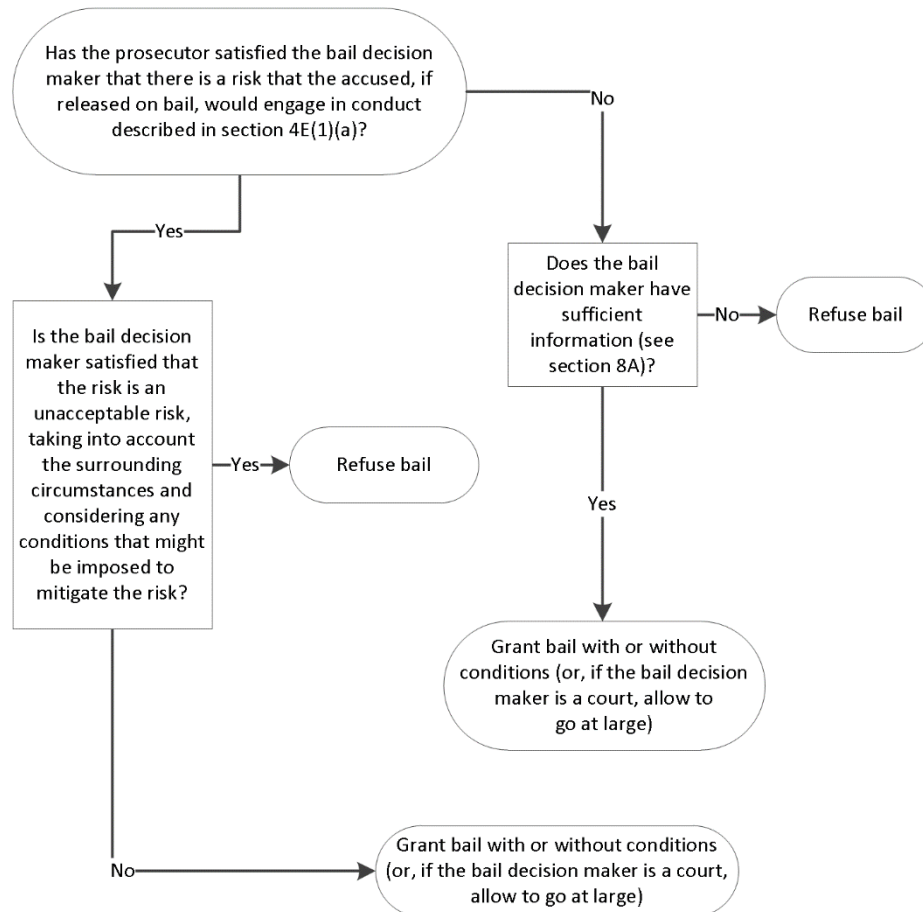
- (5) Flow Chart 4 shows the process for applying the step 1—show compelling reason test and then the step 2—unacceptable risk test.

Flow Chart 4 – Show compelling reason and unacceptable risk tests



(6) Flow Chart 5 shows the process for applying the unacceptable risk test alone.

Flow Chart 5 – Unacceptable risk test alone



".

Part 3—What bail decision makers must take into account

Division 1—Considerations concerning Aboriginal people

31 Definitions

In section 3 of the Principal Act **insert** the following definition—

"Aboriginal bail support service means a bail support service that is provided by an entity that—

- (a) is managed by Aboriginal people; or
- (b) operates for the benefit of Aboriginal people;"

32 Surrounding circumstances

At the foot of section 3AAA(1)(i) of the Principal Act **insert**—

"Note

If the accused is an Aboriginal person, see also section 5AAA(4A)."

33 Section 3A substituted

For section 3A of the Principal Act **substitute**—

"3A Determination in relation to an Aboriginal person

- (1) In making a determination under this Act in relation to an Aboriginal person, a bail decision maker must take into account (in addition to any other requirements of this Act) any issues that arise due to the person's Aboriginality, including the following—

Part 3—What bail decision makers must take into account

- (a) the historical and ongoing discriminatory systemic factors that have resulted in Aboriginal people being over-represented in the criminal justice system, including in the remand population;
 - (b) the risk of harm and trauma that being in custody poses to Aboriginal people;
 - (c) the importance of maintaining and supporting the development of the person's connection to culture, kinship, family, Elders, country and community;
 - (d) any issues that arise in relation to the person's history, culture or circumstances, including the following—
 - (i) the impact of any experience of trauma and intergenerational trauma, including abuse, neglect, loss and family violence;
 - (ii) any experience of out of home care, including foster care and residential care;
 - (iii) any experience of social or economic disadvantage, including homelessness and unstable housing;
 - (iv) any ill health the person experiences, including mental illness;
 - (v) any disability the person has, including physical disability, intellectual disability and cognitive impairment;
-

(vi) any caring responsibilities the person has, including as the sole or primary parent of an Aboriginal child;

(e) any other relevant cultural issue or obligation.

Note

If the Aboriginal person is also a child, the bail decision maker must also take into account the issues set out in section 3B(1).

- (2) The bail decision maker is to take account of an issue set out in subsection (1) by reference to the evidence and information that is reasonably available to the bail decision maker at the time, including information provided by—
- (a) the Aboriginal person's family and community; and
 - (b) providers of Aboriginal bail support services.
- (3) Despite subsection (2), the bail decision maker is to take account of the issues set out in subsection (1)(a) to (c) whether or not any evidence or information is before the bail decision maker in respect of those issues.
- (4) The requirement to take an issue set out in subsection (1) into account applies regardless of—
- (a) whether the person's connection to their Aboriginality and culture has been intermittent throughout their life; and
 - (b) whether the person has only recently connected to or discovered their culture or heritage; and
-

- (c) when the person first discloses that they are an Aboriginal person.
- (5) If a bail decision maker refuses bail to an Aboriginal person, the bail decision maker must—
 - (a) identify the matters the bail decision maker had regard to in taking into account the issues set out in subsection (1); and
 - (b) either—
 - (i) state those matters orally when refusing bail and ensure that an audio visual recording, or an audio recording, is made of that statement; or
 - (ii) record those matters in writing in a form that the bail decision maker considers appropriate.

Notes

- 1 Section 19(2) of the Charter of Human Rights and Responsibilities provides that Aboriginal persons hold distinct cultural rights and must not be denied the various rights referred to in that provision.
- 2 When considering bail for an Aboriginal person charged with a Commonwealth offence, a bail decision maker must comply with section 15AB(1)(b) of the Crimes Act 1914 of the Commonwealth."

34 Conduct conditions

- (1) At the foot of section 5AAA(4)(g) of the Principal Act **insert**—

"Note

If the accused is an Aboriginal person, see subsection (4A)."

(2) After section 5AAA(4) of the Principal Act
insert—

"(4A) If a bail decision maker is imposing a condition referred to in subsection (4)(g), and the accused is an Aboriginal person, the bail decision maker must take into account that it is important for the bail support services that Aboriginal people attend and participate in to be Aboriginal bail support services where that is appropriate, and where such services are available.

Note

In making a determination under this Act in relation to an Aboriginal person, a bail decision maker must take into account the issues set out in section 3A(1)."

Division 2—Considerations concerning children

35 Determination in relation to a child

For section 3B(1) of the Principal Act
substitute—

- "(1) In making a determination under this Act in relation to a child, a bail decision maker must take into account (in addition to any other requirements of this Act) the following issues—
- (a) the child's age, maturity and stage of development at the time of the alleged offence;
 - (b) the need to impose on the child the minimum intervention required in the circumstances, with the remand of the child being a last resort;
 - (c) the presumption at common law that a child who is 10 years of age or over but under 14 years of age cannot commit an offence;
-

- (d) the need to preserve and strengthen the child's relationships with—
 - (i) the child's parents, guardian and carers; and
 - (ii) other significant persons in the child's life;
 - (e) the importance of supporting the child to live at home or in safe, stable and secure living arrangements in the community;
 - (f) the importance—
 - (i) of supporting the child to engage in education, or in training or work; and
 - (ii) of that engagement being subject only to minimal interruption or disturbance;
 - (g) the need to minimise the stigma to the child resulting from being remanded;
 - (h) the fact that time in custody has been shown to pose criminogenic and other risks for children, including—
 - (i) a risk that the child will become further involved in the criminal justice system; and
 - (ii) a risk of harm;
 - (i) the need to ensure that the conditions of bail—
 - (i) are no more onerous than is necessary; and
 - (ii) do not constitute unfair management of the child;
-

- (j) the fact that some cohorts of children, including the following cohorts, experience discrimination resulting in that cohort's over-representation in the criminal justice system—
 - (i) Aboriginal children;
 - (ii) children involved in the child protection system;
 - (iii) children from culturally and linguistically diverse backgrounds;
 - (k) whether, if the child were found guilty of the offence charged, it is likely—
 - (i) that the child would be sentenced to a term of imprisonment; and
 - (ii) if so, that the time the child would spend remanded in custody if bail is refused would exceed that term of imprisonment;
 - (l) any of the following issues that arise—
 - (i) any ill health the child experiences, including mental illness;
 - (ii) any disability the child has, including physical disability, intellectual disability, cognitive impairment and developmental delay;
 - (iii) the impact on the child, and on the child's behaviour, of any experience of abuse, trauma, neglect, loss, family violence or child protection involvement,
-

Part 3—What bail decision makers must take into account

including removal from family or
placement in out of home care;

- (m) any other relevant factor or
characteristic.

Note

If the child is also an Aboriginal person, the bail
decision maker must also take into account the issues
set out in section 3A(1).

- (1A) The bail decision maker is to take account of
an issue set out in subsection (1) by
reference to the evidence and information
that is reasonably available to the bail
decision maker at the time.
- (1B) Despite subsection (1A), the bail decision
maker is to take account of the issues set out
in subsection (1)(b) to (j) whether or not any
evidence or information is before the bail
decision maker in respect of those issues."

Division 3—Surrounding circumstances

**36 Surrounding circumstances—where probable time
on remand exceeds likely sentence of imprisonment**

Before section 3AAA(1)(a) of the Principal Act
insert—

- "(aa) whether, if the accused were found guilty of
the offence with which the accused is
charged, it is likely—
- (i) that the accused would be sentenced to
a term of imprisonment; and
- (ii) if so, that the time the accused would
spend remanded in custody if bail is
refused would exceed that term of
imprisonment;".
-

37 Surrounding circumstances—accused on remand or at large awaiting sentence

After section 3AAA(1)(e)(iii) of the Principal Act
insert—

- "(iiia) was on remand for another offence; or
- (iiib) was at large awaiting sentence for another offence; or".

38 Surrounding circumstances—special vulnerability

For section 3AAA(1)(h) of the Principal Act
substitute—

- "(h) any special vulnerability of the accused, including—
 - (i) being an Aboriginal person; or
 - (ii) being a child; or
 - (iii) experiencing any ill health, including mental illness; or
 - (iv) having a disability, including physical disability, intellectual disability and cognitive impairment;

Note

The bail decision maker is required to take certain issues into account if the accused is an Aboriginal person—see section 3A. Further, the bail decision maker is required to take certain issues into account if the accused is a child—see section 3B. The bail decision maker is required to take all these issues into account if the accused is both an Aboriginal person and a child."

Part 4—Repeal of certain offences

39 Section 30A repealed

Section 30A of the Principal Act is **repealed**.

40 Section 30B repealed

Section 30B of the Principal Act is **repealed**.

41 Section 32A repealed

Section 32A of the Principal Act is **repealed**.

Part 5—Clarification, modernisation and other improvements

Division 1—Sureties to be replaced by bail guarantees

Subdivision 1—Amendments to Principal Act

42 Definitions

In section 3 of the Principal Act **insert** the following definitions—

"bail guarantee means an undertaking, given by one or more persons, to pay a specified amount if there is—

- (a) a failure to comply with a bail undertaking or an undertaking given under section 16B (as the case requires); or
- (b) a failure to comply with a condition of the grant of bail in respect of which the undertaking referred to in paragraph (a) was given;

bail guarantor means a person who gives a bail guarantee;"

43 Bail undertaking

Section 5(3) of the Principal Act is **repealed**.

44 Section 5AAB amended

- (1) For the heading to section 5AAB of the Principal Act **substitute**—

"Bail decision maker to have regard to means of accused or bail guarantor".

- (2) In section 5AAB(1) of the Principal Act, for "section 5(2)(c)," **substitute** "section 5(2)(b),".
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- (3) In section 5AAB(3) of the Principal Act—
 - (a) for "a surety for a specified amount" **substitute** "a bail guarantee";
 - (b) for "a proposed surety" **substitute** "a proposed bail guarantor";
 - (c) in paragraph (b), for "amount of the surety" **substitute** "amount of the bail guarantee".
- (4) In section 5AAB(4) of the Principal Act, for "surety" **substitute** "bail guarantor".

45 Section 9 amended

- (1) **Insert** the following heading to section 9 of the Principal Act—
"Bail guarantor".
 - (2) In section 9(1) of the Principal Act, for "surety to an undertaking of bail" **substitute** "bail guarantor".
 - (3) In section 9(2) of the Principal Act—
 - (a) for "a surety or sureties" **substitute** "one or more bail guarantors";
 - (b) for "proposed surety" **substitute** "proposed bail guarantor";
 - (c) in paragraph (a), for "surety's" **substitute** "proposed bail guarantor's".
 - (4) In section 9(2A) of the Principal Act, for "surety" (where twice occurring) **substitute** "bail guarantor".
 - (5) In section 9(3) of the Principal Act—
 - (a) for "with a surety or sureties" **substitute** "with one or more bail guarantors";
-

- (b) in paragraph (a)—
 - (i) for "means of the surety or sureties" **substitute** "means of each bail guarantor";
 - (ii) for "the surety or sureties (as the case may be)" **substitute** "a proposed bail guarantor";
- (c) in paragraphs (b) and (c), for "the surety or sureties" **substitute** "each proposed bail guarantor".
- (6) In section 9(3A)(a) and (b) of the Principal Act, for "surety" **substitute** "proposed bail guarantor".
- (7) In section 9(3B) of the Principal Act—
 - (a) in paragraph (a)(ii), for "surety" (where twice occurring) **substitute** "bail guarantor";
 - (b) in paragraph (b)(i), for "surety" **substitute** "bail guarantor".
- (8) In section 9(3D) of the Principal Act, for "surety" **substitute** "bail guarantor".
- (9) In section 9(6) of the Principal Act, for "surety for bail" **substitute** "bail guarantor".
- (10) In section 9(7) and (7A) of the Principal Act, for "surety" (where twice occurring) **substitute** "bail guarantor".
- (11) In section 9(8) of the Principal Act, for "surety" **substitute** "bail guarantor".

46 Power of bail justice to grant or refuse bail

In section 10A(5A)(b) of the Principal Act, for "of any surety or sureties" **substitute** "specified in any bail guarantee".

47 Power of court to grant or refuse bail

In section 12(3A)(b) of the Principal Act, for "of any surety or sureties" **substitute** "specified in any bail guarantee".

48 Extension of bail

(1) In section 16(1) of the Principal Act—

- (a) for "as surety or sureties" **substitute** "as a bail guarantor";
- (b) for "the surety or sureties" **substitute** "all the bail guarantors";
- (c) for "as surety to elect" **substitute** "as a bail guarantor to elect";
- (d) for "as surety has" **substitute** "as a bail guarantor has".

(2) In section 16(2) of the Principal Act, for "sureties" (wherever occurring) **substitute** "bail guarantors".

49 Written notice of extension of bail

In section 16A of the Principal Act—

- (a) for "the surety or sureties" **substitute** "each bail guarantor";
- (b) in paragraph (a), for "surety" **substitute** "bail guarantor".

50 Written notice of conditions of bail

In section 17(2) of the Principal Act—

- (a) for "a surety or sureties for his attendance and surrender into custody" **substitute** "one or more bail guarantees";
- (b) for "the surety or sureties" **substitute** "each bail guarantor";

- (c) for "the surety or each of the sureties (as the case requires)" **substitute** "each bail guarantor".

51 Electronic signature of undertaking by accused

In section 17A(3) of the Principal Act—

- (a) for "has a surety or sureties" **substitute** "is in respect of a grant of bail that is subject to a condition that requires one or more bail guarantees";
- (b) for "the surety signs" **substitute** "each bail guarantor signs".

52 Electronic signature of undertaking by child accused's parent or some other person

In section 17B(3) of the Principal Act—

- (a) for "has a surety or sureties" **substitute** "is in respect of a grant of bail that is subject to a condition that requires one or more bail guarantees";
- (b) for "the surety signs" **substitute** "each bail guarantor signs".

53 Section 18AI amended

- (1) In the heading to section 18AI of the Principal Act, for "sureties" **substitute** "bail guarantors".
 - (2) In section 18AI(1) of the Principal Act—
 - (a) for "a surety or sureties" **substitute** "one or more bail guarantees";
 - (b) for "each surety" **substitute** "each bail guarantor".
 - (3) In section 18AI(2)(c) of the Principal Act, for "surety" **substitute** "bail guarantor".
-

54 Section 18AJ amended

- (1) In the heading to section 18AJ of the Principal Act, for "**Surety**" **substitute** "**Bail guarantor**".
- (2) In section 18AJ(1) of the Principal Act—
 - (a) for "surety for a person admitted to bail" **substitute** "bail guarantor";
 - (b) for "that person" **substitute** "the person admitted to bail".
- (3) In section 18AJ(2) of the Principal Act, for "surety" **substitute** "bail guarantor".

55 Appeal by Director of Public Prosecutions against insufficiency of bail etc.

- (1) In section 18A(2) of the Principal Act, for "each of the sureties" **substitute** "each bail guarantor".
 - (2) In section 18A(3) of the Principal Act, for "surety" (where twice occurring) **substitute** "bail guarantor".
 - (3) In section 18A(5) of the Principal Act, for "surety" **substitute** "bail guarantor".
 - (4) In section 18A(9) of the Principal Act—
 - (a) for "find further or other surety or" **substitute** "find another bail guarantor or further or other";
 - (b) for "until further or other surety or" **substitute** "until another bail guarantee or further or other".
-

56 Arrest on another charge not to vacate bail

- (1) In section 19(1) of the Principal Act, for "his sureties" **substitute** "each bail guarantor".
- (2) In section 19(2) of the Principal Act, for "sureties for his attendance until he is discharged or sentenced" **substitute** "bail guarantees".
- (3) In section 19(3) of the Principal Act, for "the sureties (if any) for his attendance are" **substitute** "each bail guarantor (if any) is".

57 Section 20 amended

- (1) **Insert** the following heading to section 20 of the Principal Act—
 "Death of bail guarantor".
- (2) In section 20 of the Principal Act—
 - (a) for "surety to bail" **substitute** "bail guarantor";
 - (b) for "another surety" **substitute** "another bail guarantor".

58 Section 21 amended

- (1) In the heading to section 21 of the Principal Act, for "surety" **substitute** "bail guarantor".
- (2) In section 21 of the Principal Act, for "surety" **substitute** "bail guarantor".

59 Section 23 amended

- (1) **Insert** the following heading to section 23 of the Principal Act—
 "Bail guarantor may apply for discharge".
 - (2) In section 23(1) of the Principal Act, for "Any of the sureties for the attendance of an accused released on bail" **substitute** "If an accused is released on bail with a bail guarantee, a bail guarantor".
-

(3) In section 23(4) of the Principal Act—

- (a) for "a surety" **substitute** "a bail guarantor";
- (b) for "another surety" **substitute** "another bail guarantor";
- (c) for "a further surety or" **substitute** "another bail guarantor or further".

60 Arrest of person released on bail

(1) In section 24(1) of the Principal Act—

- (a) in paragraph (b)—
 - (i) for "any surety for the person" **substitute** "any of the person's bail guarantors";
 - (ii) for "the surety" (where twice occurring) **substitute** "the bail guarantor";
 - (iii) for "as a surety" **substitute** "as a bail guarantor";
- (b) in paragraph (c), for "any surety is" **substitute** "any of the person's bail guarantors are".

(2) In section 24(3)(a) of the Principal Act, for "sureties" **substitute** "a condition that requires one or more bail guarantees".

61 Section 31 amended

(1) **Insert** the following heading to section 31 of the Principal Act—

"Indemnifying bail guarantor".

(2) In section 31(2) of the Principal Act, for "surety" (where twice occurring) **substitute** "bail guarantor".

62 Deposit forfeited on failure to attend

In section 32 of the Principal Act, for "surety" (where twice occurring) **substitute** "bail guarantor".

63 Regulations

In section 33(c) of the Principal Act, for "sureties" **substitute** "bail guarantors".

Subdivision 2—Consequential amendments to other Acts

64 Crown Proceedings Act 1958

- (1) In section 2A of the **Crown Proceedings Act 1958** **insert** the following definition—
"***bail guarantor*** has the same meaning as in the **Bail Act 1977**";.
 - (2) In section 6(1) of the **Crown Proceedings Act 1958**, for "surety or sureties" (wherever occurring) **substitute** "bail guarantor or guarantors".
 - (3) In section 6(1A) of the **Crown Proceedings Act 1958**, for "surety" **substitute** "bail guarantor".
 - (4) In section 6(3) of the **Crown Proceedings Act 1958**—
 - (a) for "a surety or sureties" **substitute** "one or more bail guarantors";
 - (b) for "absent sureties" **substitute** "absent bail guarantors";
 - (c) in paragraph (a), for "surety" **substitute** "bail guarantor".
 - (5) In section 6(4), (9) and (10) of the **Crown Proceedings Act 1958**, for "surety" (where twice occurring) **substitute** "bail guarantor".
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65 Children, Youth and Families Act 2005

In section 430ZC(1) of the **Children, Youth and Families Act 2005**, for "surety" **substitute** "bail guarantor (within the meaning of the **Bail Act 1977**)".

66 Coroners Act 2008

(1) In section 59(3) of the **Coroners Act 2008**, for "sureties" **substitute** "bail guarantors".

(2) After section 59(6) of the **Coroners Act 2008** **insert—**

"(7) In this section—

bail guarantor has the same meaning as in the **Bail Act 1977**."

67 Criminal Procedure Act 2009

(1) In section 121(3) of the **Criminal Procedure Act 2009—**

(a) for "the surety or sureties" **substitute** "each bail guarantor";

(b) in paragraph (a), for "surety" **substitute** "bail guarantor".

(2) After section 121(3) of the **Criminal Procedure Act 2009** **insert—**

"(4) In this section—

bail guarantor has the same meaning as in the **Bail Act 1977**."

68 Evidence Act 2008

- (1) In section 194(4) of the **Evidence Act 2008**, for "sureties" **substitute** "bail guarantors".
- (2) After section 194(7) of the **Evidence Act 2008** **insert**—
 - "(8) In this section—
bail guarantor has the same meaning as in the **Bail Act 1977**."

69 Fisheries Act 1995

- (1) In section 101E(1) of the **Fisheries Act 1995**—
 - (a) in paragraph (b)—
 - (i) for "surety for the person" **substitute** "of the person's bail guarantors";
 - (ii) for "the surety" (where twice occurring) **substitute** "the bail guarantor";
 - (ii) for "a surety" **substitute** "a bail guarantor";
 - (b) in paragraph (c), for "surety" **substitute** "bail guarantor".
 - (2) After section 101E(2) of the **Fisheries Act 1995** **insert**—
 - "(3) In this section—
bail guarantor has the same meaning as in the **Bail Act 1977**."
-

70 Magistrates' Court Act 1989

- (1) In section 3(1) of the **Magistrates' Court Act 1989** insert the following definition—
"**bail guarantor** has the same meaning as in the **Bail Act 1977**";
- (2) In section 62(2) of the **Magistrates' Court Act 1989**, for "sureties" substitute "bail guarantors".
- (3) In section 77(2) of the **Magistrates' Court Act 1989**, for "sureties" substitute "bail guarantors".

Division 2—Gender neutral language

71 Definitions

In section 3 of the Principal Act, in the definition of **bail support service**, for "his or her" substitute "the accused's".

72 Opposing bail

- (1) In section 7(1) of the Principal Act, for "he" substitute "the prosecutor".
- (2) In section 7(2) of the Principal Act, for "him" substitute "the person".

73 Application for bail

In section 8(1) of the Principal Act—

- (a) in paragraph (b)—
 - (i) for "he" substitute "the accused";
 - (ii) for "him" substitute "the accused";
 - (b) in paragraph (c)(iii) omit "himself";
 - (c) in paragraph (d), for "his or her" substitute "the accused's".
-

74 Bail guarantor

- (1) In section 9(2) of the Principal Act—
 - (a) in paragraph (b), for "his" **substitute** "the proposed bail guarantor's";
 - (b) in paragraph (c)—
 - (i) for "his" **substitute** "the proposed bail guarantor's";
 - (ii) for "the person for whom he is to be surety" **substitute** "the accused".
- (2) In section 9(3)(b) of the Principal Act, for "make before it or him (as the case may be) an affidavit of justification for bail" **substitute** "make an affidavit of justification for bail before the bail decision maker or other person authorized by section 27".
- (3) In section 9(5)(a) of the Principal Act, for "it or him" **substitute** "the court or other person".
- (4) In section 9(6) of the Principal Act, for "he" **substitute** "the bail guarantor".

75 Cash deposit as security for penalty

- (1) In section 11(1) of the Principal Act—
 - (a) for "he" **substitute** "the police officer";
 - (b) for "him on his" **substitute** "the person on the person's";
 - (c) for "his offence" **substitute** "the person's offence".
 - (2) In section 11(2) of the Principal Act—
 - (a) for "him that he" **substitute** "the person that the person";
-

- (b) for "he fails to appear accordingly the charge against him may be heard in his" **substitute** "the person fails to appear accordingly the charge may be heard in the person's";
 - (c) for "he appears" **substitute** "the person appears";
 - (d) for "to him" **substitute** "to the person".
- (3) In section 11(3) of the Principal Act, for "him the charge against him may be heard and determined in his absence and the deposit lodged by him" **substitute** "the person the charge may be heard and determined in the person's absence and the deposit lodged by the person".
- (4) In section 11(4) of the Principal Act—
- (a) **omit** "against him";
 - (b) for "to him" **substitute** "to the person".

76 Extension of bail

- (1) In section 16(1) of the Principal Act—
- (a) for "any person or persons offering himself or themselves" **substitute** "each person offering themselves";
 - (b) for "any person offering himself" **substitute** "each person offering themselves";
 - (c) for "with his consent" **substitute** "with that person's consent";
 - (d) for "a person offering himself" **substitute** "a person offering themselves".
- (2) In section 16(3) of the Principal Act—
- (a) for "he" **substitute** "the accused";
 - (b) for "him" **substitute** "the accused".
-

77 Written notice of conditions of bail

- (1) In section 17(1) of the Principal Act—
 - (a) **omit** "his" (wherever occurring);
 - (b) for "he" **substitute** "the accused".
- (2) In section 17(2) of the Principal Act—
 - (a) for "his bail" (where twice occurring) **substitute** "bail";
 - (b) for "his failure" (where twice occurring) **substitute** "failure".

78 Application for variation of bail conditions

In section 18AC(3)(b) of the Principal Act, for "his or her" **substitute** "the".

79 Application for revocation of bail

In section 18AE(2)(b) of the Principal Act, for "his or her" **substitute** "the".

80 Appeal by Director of Public Prosecutions against insufficiency of bail etc.

- (1) In section 18A(2) of the Principal Act, for "he" **substitute** "the Director".
 - (2) In section 18A(5) of the Principal Act—
 - (a) for "his" (where first occurring) **substitute** "the Director's";
 - (b) for "by himself or by a legal practitioner on his behalf" **substitute** "in person or by a legal practitioner".
 - (3) In section 18A(7) of the Principal Act, for "him" **substitute** "the respondent".
 - (4) In section 18A(8) of the Principal Act **omit** "his".
 - (5) In section 18A(9) of the Principal Act, for "him" **substitute** "the respondent".
-

(6) In section 18A(11) of the Principal Act—

- (a) **omit** "if he so desires";
- (b) for "that he" **substitute** "that the respondent".

81 Arrest on another charge not to vacate bail

(1) In section 19(1) of the Principal Act—

- (a) for "his" **substitute** "the accused's";
- (b) for "him" **substitute** "the accused";
- (c) for "he" **substitute** "the accused".

(2) In section 19(2) of the Principal Act, for "him" (where twice occurring) **substitute** "the person".

82 Death of bail guarantor

In section 20 of the Principal Act, for "his" **substitute** "the bail guarantor's".

83 Abolition of right of a bail guarantor to apprehend a principal

In section 21 of the Principal Act, for "him or her" **substitute** "the principal".

84 Bail guarantor may apply for discharge

(1) In section 23(1) of the Principal Act—

- (a) **omit** "himself";
- (b) **omit** "his".

(2) In section 23(2) of the Principal Act, for "him" **substitute** "the accused".

(3) In section 23(3) of the Principal Act **omit** "his".

(4) In section 23(4) of the Principal Act—

- (a) for "his liability" **substitute** "liability";
 - (b) for "his attendance and may remand him" **substitute** "the accused's attendance and may remand the accused".
-

85 Arrest of person released on bail

In section 24(3) of the Principal Act—

- (a) in paragraph (a)—
 - (i) in subparagraph (ii) **omit** "his or her";
 - (ii) for "on his or her" **substitute** "on the";
- (b) in paragraph (b), for "his or her" **substitute** "the".

86 Arrest where bail insufficient

(1) In section 26(1) of the Principal Act—

- (a) for "he" (wherever occurring) **substitute** "the person";
- (b) for "his" **substitute** "the person's";
- (c) for "him" (where twice occurring) **substitute** "the person".

(2) In section 26(2) of the Principal Act, for "his apprehension" **substitute** "the person's apprehension".

87 Failure to answer bail

(1) In section 30(1) of the Principal Act—

- (a) for "him" **substitute** "the person";
- (b) for "his" **substitute** "the person's";
- (c) **omit** "himself".

(2) In section 30(2)(b) of the Principal Act—

- (a) **omit** "his";
- (b) **omit** "himself".

88 Indemnifying bail guarantor

In section 31(2) of the Principal Act, for "he" **substitute** "the person".

89 Deposit forfeited on failure to attend

In section 32 of the Principal Act, for "his"
substitute "the person's".

Division 3—References to undertakings

90 Definitions

- (1) In section 3 of the Principal Act **insert** the following definition—

"***bail undertaking*** means an undertaking given under section 5(1);".
- (2) In section 3 of the Principal Act, the definition of ***undertaking*** is **repealed**.

91 Bail undertaking

- (1) In section 5(1) of the Principal Act, for "enter into a written undertaking" **substitute** "give an undertaking in writing".
 - (2) In section 5(1A) of the Principal Act, for "enters into an undertaking" **substitute** "gives a bail undertaking".
 - (3) For section 5(2) of the Principal Act **substitute**—

"(2) A grant of bail may be subject to—
 - (a) conduct conditions; or
 - (b) a condition that requires one or more bail guarantees or a deposit of money of a specified amount (whether or not the grant of bail is also subject to conduct conditions)—
but does not need to be subject to any of these conditions."
-

92 Conduct conditions

In section 5AAA(1)(d) of the Principal Act, for "conditions of bail" **substitute** "bail undertaking".

93 Bail guarantor

- (1) In section 9(3)(c) of the Principal Act, for "undertaking of bail" **substitute** "bail undertaking".
- (2) In section 9(3B)(a) of the Principal Act, for "undertaking of bail" **substitute** "bail undertaking".
- (3) In section 9(3D)(a) of the Principal Act, for "an undertaking of bail" **substitute** "a bail undertaking".

94 Power of police officer, sheriff or authorised person to grant or refuse bail

In section 10(5B) of the Principal Act, for "enter into an undertaking" **substitute** "give a bail undertaking".

95 Extension of bail

- (1) In section 16(1) of the Principal Act—
 - (a) for "Every undertaking" **substitute** "Every bail undertaking";
 - (b) for "an undertaking" **substitute** "a bail undertaking".
 - (2) In section 16(2) of the Principal Act—
 - (a) in paragraph (b), for "undertaking of bail" **substitute** "bail undertaking";
 - (b) for "entering into a fresh undertaking" **substitute** "giving a fresh bail undertaking".
 - (3) In section 16(3) of the Principal Act, for "undertaking" **substitute** "bail undertaking".
-

- (4) In section 16(4) of the Principal Act, for "an undertaking" **substitute** "a bail undertaking".

96 Section 16B amended

- (1) In the heading to section 16B of the Principal Act, for "**enter into undertaking**" **substitute** "**give bail undertaking**".
- (2) In section 16B of the Principal Act—
- (a) for "enter into an undertaking," **substitute** "give a bail undertaking,";
- (b) for "enters into" **substitute** "gives".

97 Section 17A amended

- (1) In the heading to section 17A of the Principal Act, for "**undertaking**" **substitute** "**bail undertaking**".
- (2) In section 17A(1) of the Principal Act—
- (a) for "enter into a written undertaking under section 5(1)" **substitute** "give a bail undertaking";
- (b) for "to enter into a written undertaking" **substitute** "to give a bail undertaking";
- (c) in paragraph (d)(i), for "entered into" **substitute** "given".
- (3) In section 17A(2) of the Principal Act—
- (a) for "an undertaking is entered into" **substitute** "a bail undertaking is given";
- (b) for "the undertaking" **substitute** "the bail undertaking".
- (4) In section 17A(3) of the Principal Act—
- (a) for "an undertaking entered into" **substitute** "a bail undertaking given";
-

(b) for "the undertaking" **substitute** "the bail undertaking".

(5) In section 17A(4) of the Principal Act, for "an undertaking is entered into" **substitute** "a bail undertaking is given".

98 Electronic signature of undertaking by child accused's parent or some other person

(1) In section 17B(1) of the Principal Act—

(a) for "enter into" (where twice occurring) **substitute** "give";

(b) in paragraph (c)(i), for "entered into" **substitute** "given".

(2) In section 17B(2), (3) and (4) of the Principal Act, for "entered into" **substitute** "given".

99 Application for variation of bail conditions

In section 18AC(3)(b) of the Principal Act, for "conditions of bail" **substitute** "bail undertaking".

100 Application for revocation of bail

In section 18AE(2)(b) of the Principal Act, for "conditions of bail" **substitute** "bail undertaking".

101 Arrest on another charge not to vacate bail

In section 19(1) of the Principal Act, for "undertaking of bail" **substitute** "bail undertaking".

102 Bail guarantor may apply for discharge

(1) In section 23(1) of the Principal Act—

(a) for "under the conditions of the bail" **substitute** "under the bail undertaking";

(b) for "the undertaking" **substitute** "the bail undertaking".

- (2) In section 23(4) of the Principal Act, for "an undertaking of bail" **substitute** "a bail undertaking".

103 Arrest of person released on bail

- (1) In section 24(1) of the Principal Act—
- (a) in paragraph (a)—
- (i) for "break the condition for his attendance or any other condition on which he was admitted to bail," **substitute** "breach the bail undertaking or any condition of bail,";
- (ii) for "is breaking or has broken any such other condition;" **substitute** "is breaching or has breached any such condition;";
- (b) in paragraph (b), for "break the condition for his attendance" **substitute** "breach the bail undertaking".
- (2) In section 24(2)(b) of the Principal Act, for "a condition of his or her bail" **substitute** "the bail undertaking".
- (3) In section 24(3) of the Principal Act—
- (a) after "Where a person" **insert** "who is on bail";
- (b) in paragraph (a)—
- (i) for "has broken or is likely to break a condition of the undertaking on which the person was admitted to bail" **substitute** "has breached or is likely to breach the bail undertaking or a condition of bail";
- (ii) in subparagraph (i), for "conditions of the bail" **substitute** "bail undertaking";
-

(iii) for "original undertaking or a new undertaking" **substitute** "original bail undertaking or on a new bail undertaking";

(c) in paragraph (b), for "original undertaking" **substitute** "original bail undertaking".

104 Arrest where bail insufficient

In section 26(2) of the Principal Act, for "entered into an undertaking conditioned for his attendance before a court" **substitute** "given a bail undertaking".

105 Admission to bail

(1) In section 27(1) of the Principal Act—

(a) for "an undertaking" **substitute** "bail";

(b) for "the undertaking need not be entered into" **substitute** "the bail undertaking (and the required bail guarantees, if any) need not be given";

(c) for "may be entered into by the parties" **substitute** "may be given";

(d) for "the undertaking had been entered into" **substitute** "the bail undertaking and the bail guarantees, if any, had been given".

(2) In section 27(1A) of the Principal Act, for "enters into" **substitute** "gives".

106 Failure to answer bail

(1) In section 30(1) of the Principal Act, for "undertaking of bail" **substitute** "bail undertaking".

(2) In section 30(2) of the Principal Act—

(a) in paragraph (a)—

(i) for "an undertaking of bail entered into"
substitute "a bail undertaking given";

(ii) for "conditions of the undertaking"
substitute "conditions of bail";

(b) in paragraph (b)—

(i) for "an undertaking of bail entered into"
substitute "a bail undertaking given";

(ii) for "the undertaking of bail" **substitute**
"the bail undertaking".

107 Deposit forfeited on failure to attend

In section 32 of the Principal Act, for
"undertaking" **substitute** "bail undertaking".

Division 4—Provisions redrafted to modernise language

108 Section 28 substituted

For section 28 of the Principal Act **substitute**—

**"28 One bail undertaking may be given in
respect of multiple charges**

If a bail decision maker is to grant bail to an
accused who is held in custody in relation to
charges for 2 or more offences, the bail
decision maker may allow the accused to
give a single bail undertaking in respect of
all the charges."

109 Indemnifying bail guarantor

- (1) For section 31(1) of the Principal Act
substitute—

"(1) A person must not agree with another person to indemnify that other person against any liability which that other person may incur as a bail guarantor.

Penalty: 15 penalty units or imprisonment for 3 months.

- (1A) A person must not indemnify another person against any liability which that other person may incur as a bail guarantor.

Penalty: 15 penalty units or imprisonment for 3 months.

- (1B) A person must not agree to be indemnified against any liability which the person may incur as a bail guarantor.

Penalty: 15 penalty units or imprisonment for 3 months."

- (2) In section 31(2) of the Principal Act, after "(1)"
insert "or (1B)".

Division 5—Other amendments

110 Outdated references to Departments

- (1) In section 3AAC(2)(e) of the Principal Act, for "Department of Justice and Regulation"
substitute "Department of Justice and Community Safety".
- (2) In section 5A(1)(c) of the Principal Act, for "Department of Human Services" **substitute** "Department of Justice and Community Safety".
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- (3) In section 5A(3) of the Principal Act, for "Department of Justice and Regulation" **substitute** "Department of Justice and Community Safety".

111 Definitions—*Aboriginal person*

In section 3 of the Principal Act, in the definition of ***Aboriginal person***, for "Aborigine" (wherever occurring) **substitute** "Aboriginal".

112 Power to return accused to youth justice centre

In section 5A(1)(d)(i) of the Principal Act, for "bail is not to be entered" **substitute** "the accused is not to be admitted to bail".

113 Application for bail

- (1) Before section 8(1)(a) of the Principal Act **insert**—

"(aa) the bail decision maker is not bound by the rules of evidence;"

- (2) In subsection 8(2) of the Principal Act, for "subsection (1)(a)" **substitute** "subsection (1)(aa) or (a)".

114 Power of court to grant or refuse bail

After section 12(3) of the Principal Act **insert**—

"(3AA) Additionally, the court may allow the person to go at large if—

- (a) the court considers it appropriate to do so; and
- (b) the court is not required to refuse bail."

115 Certain circumstances required before application may be heard

Before section 18AA(1)(a) of the Principal Act **insert—**

"(aa) the application is the first or second instance of the applicant applying to a court for bail (whether under section 18 or otherwise) since being taken into custody; or".

116 Statute law revision

In section 26(1) of the Principal Act, after "Where" **insert "the".**

116A New section 32C inserted

After section 32B of the Principal Act **insert—**

"32C Review of amendments made by Bail Amendment Act 2023

- (1) The Attorney-General must cause a review to be conducted of the operation of the amendments made to this Act by the **Bail Amendment Act 2023**.
- (2) The review must be commenced no later than 2 years after the commencement of the **Bail Amendment Act 2023**.
- (3) The review must be completed no later than 6 months after it commences.
- (4) The Attorney-General must cause a copy of the review to be laid before each House of the Parliament no later than 14 sitting days after receiving it."

Part 6—Consequential amendments and transitional provisions

Division 1—Consequential amendments

117 Children, Youth and Families Act 2005

For the note to section 346(6) of the **Children, Youth and Families Act 2005** substitute—

"Note

The **Bail Act 1977** contains provisions that are particular to children. These include the following—

- section 3B (determination in relation to a child);
- section 5AA (conditions of bail granted to a child in certain circumstances);
- section 10(3) (power of police officer, sheriff or authorised person to grant or refuse bail);
- section 10A(3) and (6) (power of bail justice to grant or refuse bail);
- section 12(4) and (5) (power of court to grant or refuse bail);
- section 16B (capacity of child to give bail undertaking);
- section 24(3A) (arrest of person released on bail);

Additionally, section 3A (determination in relation to an Aboriginal person) applies if the child is an Aboriginal person."

118 Fisheries Act 1995

In section 98(1)(d) of the **Fisheries Act 1995**, for "section 30(1), 30A(1) or 30B of the **Bail Act 1977**" substitute "section 30(1) of the **Bail Act 1977**".

Division 2—Transitional provisions

119 Transitional provisions

After section 34(21) of the Principal Act **insert—**

- "(22) An amendment made to this Act by a provision of the **Bail Amendment Act 2023** applies to an application made, or an appeal commenced, under this Act on or after the commencement of that provision, regardless of when the offence is alleged to have been committed.
- (23) On and after the commencement of Division 1 of Part 5 of the **Bail Amendment Act 2023—**
- (a) for each person who, immediately before that commencement, was a surety under this Act as then in force—
 - (i) the person is taken to be a bail guarantor; and
 - (ii) the undertaking constituting the surety is taken to be a bail guarantee; and
 - (iii) the amount of the surety is taken to be the amount of the bail guarantee; and
 - (b) unless the contrary intention appears, a reference, however described, to a surety in relation to bail—
 - (i) in any Act (other than this Act); or
 - (ii) in any subordinate instrument; or
-

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(iii) in any other document—

is taken, so far as the document relates to any period after that commencement, to be a reference to a bail guarantor, a bail guarantee, or the amount of a bail guarantee, whichever the context requires."

Part 7—Repeal of this Act

120 Repeal of this Act

This Act is **repealed** on 25 March 2025.

Note

The repeal of this Act does not affect the continuing operation of the amendments made by it (see section 15(1) of the **Interpretation of Legislation Act 1984**).

Endnotes

1 General information

See www.legislation.vic.gov.au for Victorian Bills, Acts and current authorised versions of legislation and up-to-date legislative information.

[†] *Minister's second reading speech—*

Legislative Assembly:

Legislative Council:

The long title for the Bill for this Act was "A Bill for an Act to amend the **Bail Act 1977** and to make consequential amendments to other Acts and for other purposes."